

106	Purcell vs. Potratz 2019-01115653	1. Motion to Appear Pro Hac Vice 2. Status Conference Defendants GPB Capital Holdings II, L.P.; GPB Automotive Portfolio, L.P.; and GPB Capital Holdings, LLC's application for pro hac vice admission of attorney Glen A. Kopp is GRANTED. On or before the anniversary of the date of this order, if this attorney remains counsel for the moving parties, the moving parties must pay an annual renewal fee of five hundred dollars (\$500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) Moving parties shall provide notice.
107	Aguilar vs. Omni Logistics LLC 2025-01490214	1. Demurrer to Complaint 2. Case Management Conference Defendant Omni Logistics, LLC has filed a demurrer to abate/stay under Code of Civil Procedure (CCP) section 430.10, subdivision (c) or, in the alternative, a motion to stay the instant action based upon the doctrine of exclusive concurrent jurisdiction. (ROA #20.) Plaintiff Miguel Aguilar did not file an opposition to the motion. Plaintiff's failure to oppose the demurrer/motion may be treated as an abandonment of the issue or implied concession on the merits. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The Court has considered the substance of Defendant's demurrer/motion. The Court SUSTAINS IN PART the demurrer as to the requested order to abate or stay the instant action but OVERRULES the demurrer to the extent it seeks such an order without leave to amend. Nevertheless, the Court GRANTS Defendant's motion to stay under the doctrine of exclusive concurrent jurisdiction. Accordingly, the Court ORDERS that the instant action is stayed pending the final resolution of <i>Magana v. OMNI Logistics, LLC</i>, Los Angeles Superior Court Case No. 24STCV24638. (See CCP, § 1049 ["An action is deemed to be pending from the time of its commencement until its final determination upon appeal, or until the time for appeal has passed, unless the judgment is sooner satisfied.].) Defendant's Requests for Judicial Notice at ROA #18 and ROA #52 are GRANTED. (Evid. Code, § 452, subd. (d).) "A plea in abatement pursuant to section 430.10, subdivision (c), may be made by demurrer or answer when there is another action pending between the same parties on the same cause of action." (<i>Plant Insulation Co. v. Fiberborad Corp.</i> (1990) 224 Cal.App.3d 781, 787, emphases omitted.) Here, the Court finds that the <i>Magana</i> action is such an action based upon the allegations of the operative complaint in this action and the facts judicially noticed.